

Court No. - 21

Case :- WRIT - C No. - 23262 of 2018

Petitioner :- M/S Swati Menthol And Allied Chemicals Ltd.

Respondent :- Managing Director Pachimanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Mahesh Narayan Mishra

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Govind Mathur,J.

Hon'ble Chandra Dhari Singh,J.

This petition for writ is preferred with the prayer as follows:-

"(i) issue a writ, order or direction in the nature of mandamus commanding the opposite parties to enhance the electricity load of the petitioner's firm, namely, M/s Swati Menthol & Allied Chemicals Ltd. unit-2 from 1200 KVA to 1600 KVA within stipulated period as provided in the Electricity Supply Code, 2005, as petitioner has already deposited load enhancement processing fee of Rs. 10,000/-, same has been accepted by the licensee."

Suffice to mention that the demand made by the respondent-Electricity Company with regard to surcharge and also under some other heads was questioned by the petitioner before the Consumer Grievance Redressal Forum. The Consumer Grievance Redressal Forum under an order dated 19th March, 2016 declared the amounts under challenge bad and, therefore, the same was further questioned by the Electricity Company by filing an appeal before the Ombudsman. The Ombudsman dismissed the appeal and being aggrieved by the same, the Electricity Company filed a petition for writ that is pending before this Court since January, 2017. Subsequent thereto, the petitioner made a request for enhancement of load but that has not been decided on the count that the petitioner has not deposited the surcharge.

Be that as it may, let this petition for writ be listed along with

Writ-C No. 736 of 2017 on 2nd August, 2018 as a fresh case.

In the meanwhile, the petitioner shall also submit a detailed representation with regard to objections raised on behalf of Electricity Company for enhancement of amount of load and if such representation is submitted on or before 17th of July, 2018, the same shall be considered and decided on merits by the competent Authority of Paschimanchal Vidyut Vitran Nigam Ltd. on or before 24th July, 2018.

Order Date :- 11.7.2018

Nadeem Ahmad

(Chandra Dhari Singh, J.) (Govind Mathur, J.)

Chief Justice's Court

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Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Dilip B. Bhosale, Chief Justice

Hon'ble Yashwant Varma, J.

Heard Mr. Manoj Kumar Dwivedi, Advocate, holding for Mr. M.N. Mishra, Advocate, for the petitioners and Mr. Pranjal Mehrotra, learned counsel for respondent no.1 - Vidyut Vitran Nigam.

The only prayer made in the writ petition, reads thus:

"(i) issue, a writ, order or direction in the nature of Mandamus commanding the opposite parties to enhance the electricity load of the petitioner's firm, namely, M/s Swati Menthol & Allied Chemicals Ltd unit-2 from 1200 KVA to 1600 KVA within stipulated period as provided in the Electricity Supply Code, 2005, as petitioner has already deposited load enhancement processing fee of Rs. 10,000/-, same has been accepted by the licensee."

This Court, on 11 July 2018, after hearing both the sides, observed that subsequent to the order dated 28 June 2016 of the Ombudsman, which is subject matter of Writ-C No. 736 of 2017, the petitioners had made a request/application for enhancement of load but that had not been decided on the count that the petitioners had not deposited the surcharge. The question whether the respondent - Vidyut Vitran Nigam can levy surcharge, is pending consideration in Writ-C No. 736 of 2017. It is not in dispute that, in the meanwhile, the respondent - Vidyut Vitran Nigam, raised a demand of Rs. 33,48,831/- vide letter dated 21.05.2018,

which seems to be in the nature of surcharge. This demand, though annexed to the writ petition as Annexure-20, has not been challenged by the petitioners so far, either by way of a writ petition or before the appropriate forum. In this backdrop, counsel appearing for the petitioners, submits that the petitioners, without prejudice to their rights and contentions, shall deposit the entire amount of Rs. 33,48,831/- within two weeks from today and seeks direction that, on such deposit being made, the respondent - Vidyut Vitran Nigam may be directed to consider their demand for enhancement of electricity load, as prayed in the instant writ petition. Counsel appearing for the respondent - Vidyut Vitran Nigam submits that, if the petitioners pay the entire amount as demanded vide letter dated 21.05.2018, they shall allow the petitioners' demand for enhancement of electricity load within two weeks thereafter. Their submissions are recorded and accepted. It is needless to mention that the petitioners shall comply with all formalities that may be necessary for enhancement of electricity load, including payment of processing fee and other charges, if any, within two weeks from today. It is open to the petitioners to challenge the demand raised vide letter dated 21.05.2018 (Annexure-20) before the appropriate forum. All contentions are kept open, insofar as challenge to the aforementioned demand is concerned.

Petition is accordingly disposed of.

At this stage, counsel appearing for the petitioners, submits that the petitioners shall challenge the demand raised, as aforementioned, by way of a complaint before the competent authority under Section 6.5 of the

Electricity Supply Code, 2005 and directions may be issued to consider and decide the petitioners' complaint within time frame.

If the petitioners file a complaint before the competent authority, we hope and trust that the concerned authority shall deal with the same and dispose it of, as expeditiously as possible and preferably within a period of three months from the date of filing of the complaint.

Order Date :- 2.8.2018

AHA

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)